

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF Clackamas

ENTERED

NOV 19 2025

BY: MW

Jane Kay Cortez

Petitioner

Case No: _____

Benjamin Jay Barber

Filed by ☐ Guardian or ☒ Guardian ad litem

**PETITION FOR RESTRAINING
ORDER TO PREVENT ABUSE**
Ex Parte

(Elderly Persons and Persons with
Disabilities Abuse Prevention Act)

v.

Solomon Samuel Barber

Respondent
(Person to be restrained)

➤ I need an interpreter: ☐ Spanish ☐ Russian ☐ other: _____

NOTICE TO PETITIONER

- You must provide **complete and truthful** information. If you do not, the court may cancel the restraining order. The court may also hold you in contempt.
- **Contact Address and Telephone Number:** If you don't want Respondent to know your residential address or phone number, use a safe contact address and telephone number so the court and the sheriff can reach you if necessary.

I am ☐ Petitioner or ☒ Petitioner's guardian or guardian ad litem¹ ("guardian petitioner"). I declare that the following information is true as to Petitioner:

1. Residency

I live in (county and state) Clackamas, Oregon

Respondent lives in (county and state) Washington State Somewhere

☒ I am filing in this county because an incident of abuse occurred here (see below)

If this Petition is filed by a guardian petitioner, Petitioner's SAFE contact information:

10043 SE 32nd ave Milwaukie, Oregon 97222 9712700855
Street City, State, ZIP Contact Phone

2. Party Information

Petitioner:

- ☒ is age 65 or older
- ☒ is a person with a disability

Other disability information (optional): Petitioner is cognitively impaired since birth

☒ Respondent is not a court-appointed guardian or conservator for Petitioner

¹ Complete all answers on behalf of Petitioner, not yourself, unless otherwise specified

3. Other Cases Between Petitioner and Respondent (*pending or finished*)

☐ There is a restraining order² or stalking order

County and state: _____ Case #: _____

☐ There is a court case for divorce (dissolution), annulment, or separation

County and state: _____ Case #: _____

☐ There is a protective order case under ORS Chapter 125 (Guardianship and Conservatorship)

County and state: _____ Case #: _____

4. Abuse within past 180 days

Within the past 180 days (about 6 months)* the respondent has abused me (as defined in ORS 124.005(1)) at least one time in the following ways:

(*check all that apply*)

- ☐ Caused (or tried to cause) me physical pain or injury (not by accident)
- ☐ Caused physical harm by withholding services needed for my health and well-being
- ☐ Abandoned me by neglecting to perform or stopping duties and obligations and is my caretaker
- ☒ Wrongfully took or used my money or property, or threatened to
- ☐ Had sexual contact with me that I did not consent to or was not able to consent to
- ☐ Made me fear significant physical or emotional harm by:
 - ☐ using derogatory, inappropriate, or profane names or phrases
 - ☐ ridicule, harassment, threats, or intimidation
 - ☐ inappropriate sexual comments
 - ☐ conduct or actions

**The 180-day period can be increased by any time Respondent was in jail or prison, or lived more than 100 miles from your home*

☐ Respondent was in jail or prison

Dates (from – to) _____

☐ Respondent lived more than 100 miles from my home

Dates (from – to) _____

5. Incidents of Abuse (*if filing for sweepstakes restrictions, skip to section 7, below*)

A. Specific Acts re: Money or Property

- ☒ Respondent wrongfully took or used Petitioner's money or property
- ☐ Respondent knowingly alarmed Petitioner by threatening to wrongfully take or use money or property. It is reasonable for Petitioner to believe the threat would be carried out.

B. Describe the incidents of abuse that happened **within the past 180 days, starting with the most recent incident**

² Under EPPDAPA, Family Abuse Prevention Act (FAPA), or any other source

Date: June 2025 County, State: Clackamas, Oregon
Respondent, who is an estranged son of Jane Cortez, spoke with the son
, Benjamin Jay Barber who cannot drive, about driving his mother to the
funeral of Jane Kay Cortez's father, Gerald Miller, because Benjamin Jay
Barber has visual impairments and cannot drive. Respondent represented
himself as the agent of the petitioner, but failed to provide the documents
pertaining to her deceased fathers will, so Benjamin sent a request to the estate

Date: June 2025 County, State: Clackamas, Oregon
Cohabiting son was told that ^{petitioner was} ~~respondent~~ was disposed of by her, and so he
sent a letter saying that petitioner who has been a public charge, should
she be disposed of her inheritance ^{he} would file for equitable relief in the
Circuit court requesting that the state of oregon file a claim against the
estate demanding that the expenses incurred by the state, be incurred by the
estate, since abandoning their profoundly disabled child from birth.

Date: November 2025 County, State: Clackamas, Oregon
Estranged son who is the respondent, surritipiously absconded with the
petitioner and told her that she had to sign some as yet unknown documents
if she had wanted to recieve her part of the will, and assigned himself as the
power of attorney, despite knowing that such contract would be unconcionable
and that the bargaining power that he exterted upon the petitioner given
her profound disability amounted to coercive and unconcionable agreement

☐ Additional page attached labeled "Incidents of Abuse – 180 Days"

C. ☒ Other incidents of abuse happened **more than 180 days ago** (describe):

Respondant conspired with the husband of the other estranged ^{rebekah} daughter
who is currently working with department of human services, to arrange
an impromptu visit by adult and family services, without seeking input
from the petitioner whatsoever, and despite being notified that this was
going to be subject to court intervention. Petitioner asserts that this is a
conflict of interest, and to the extent that the department is involved, that
instead the court appoint an outside counsel approved by non estranged
family

☐ Additional page attached labeled "Additional Incidents of Abuse"

6. ☒ I am in **immediate and present danger of future abuse** by Respondent
Explain:
Petitioner has refused to provide any documentation about what has
been signed under his alleged power of attorney, and has failed to confirm
despite a video interview, that he no longer has the power of attorney.
the estate consists of many (thousands?) of acres of land in Montana State

7. *For sweepstakes restriction:*

- ☐ Petitioner has spent more than \$500 on sweepstakes promotions from Respondent and/or associated entities in the past year. Petitioner needs the court's assistance to avoid incurring further expense.

8. **Move-out and Assistance Orders**

- ☐ I want Respondent ordered to move out of my residence (*check all that apply*):

- ☐ the residence is solely in my name
☐ Respondent and I jointly own, lease, or rent the residence
☐ Respondent is my spouse or Registered Domestic Partner³

- ☐ I want a peace officer to accompany ☐ me ☐ Respondent to leave the residence and/or remove essential personal effects from the residence

9. **Firearms Prohibition and Dispossession** (*optional*)

- ☐ I ask the court to prohibit Respondent from possessing firearms and ammunition and to order Respondent to surrender all firearms and ammunition currently in their possession because Respondent is a threat to my physical safety and welfare.

Explain why: _____

- ☒ Petitioner and Respondent have a QUALIFYING RELATIONSHIP:

- ☐ spouses/Registered Domestic Partners (*current or former*)
☐ cohabitants (*current or former*)
☐ in a sexually intimate relationship (*current or former*)
☒ adults otherwise related by blood or marriage

10. **Additional Relationship Information**

(This information is optional. You do not have to tell the court what your relationship to Respondent is unless you have asked for an order prohibiting firearms in Section 9. Your restraining order will not be denied if you choose not to provide relationship information.)

Respondent is my:

- ☒ family member ☐ roommate/cohabitant ☐ landlord ☐ caregiver

³ Only same-sex couples can have a Registered Domestic Partnership in Oregon. If you are not sure if your partnership is a Registered Domestic Partnership, you may want to talk to a lawyer.

☐ other: _____

11. Attorney Fees

☒ I want Respondent to reimburse me for attorney fees and other expenses related to this case

I ask the court to order my requests as marked on the Restraining Order to Prevent Abuse

I hereby declare that the above statements are true to the best of my knowledge and belief. I understand they are made for use as evidence in court and I am subject to penalty for perjury.

Submitted by: ☐ Petitioner ☒ Guardian petitioner ☐ Attorney for Petitioner

11/19/2025
Date

/s/ Benjamin Jay Barber
Signature

starworks5@gmail.com
Email

Benjamin Jay Barber
Name (printed)

10043 se 32nd ave, Milwaukie, Oregon 97222
Contact Address (use a SAFE address)

City, State, ZIP

9712700855
Contact Phone (use a SAFE number)

Attorney for Petitioner:

Date

Signature

OSB#

Name (printed)

Address

City, State, ZIP

Phone